THE REGIONAL CENTRE FOR BIOTECHNOLOGY ACT, 2016

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THE REGIONAL CENTRE FOR BIOTECHNOLOGY ACT, 2016

ACT NO. 36 OF 2016

[29*th July*, 2016.]

An Act to provide for the establishment of an institution of national importance to be known as Regional Centre for Biotechnology and to provide for matters connected therewith or incidental thereto.

WHEREAS an agreement for the establishment and operation of the Regional Centre for Biotechnology Training and Education in India was entered into between the Government of India and the United Nations Educational, Scientific and Cultural Organisation on the 14th day of July, 2006;

AND WHEREAS in pursuance of the said agreement, the Central Government through an executive order dated the 20th April, 2009, established the Regional Centre for Biotechnology Training and Education at Faridabad, Haryana;

AND WHEREAS it is expedient to make provisions for strengthening and to make the Regional Centre for Biotechnology an institution of national importance for imparting education, training and conducting research in the areas of Biotechnology and related multi disciplinary areas.

BE it enacted by Parliament in the Sixty-seventh Year of the Republic of India as follows:--

1. Short title and commencement.—(*1*) This Act may be called the Regional Centre for Biotechnology Act, 2016.

(*2*) It shall come into force on such date[1] as the Central Government may, by notification in the Official Gazette, appoint.

2. Definitions.—In this Act, unless the context otherwise requires,—

(*a*) "academic staff" means Assistant Professors, Associate Professors, Professors, Deans, Sub-Deans, Executive Director and such other persons, including Visiting Professors, Professors of Eminence, Honorary Professors, Adjunct Professors and Emeritus Professors, as may be appointed or engaged for imparting education, training or conducting research in the Regional Centre for Biotechnology;

(*b*) "Board" means the Board of Governors constituted under section 14;

(*c*) "Board of Studies" means the Board of Studies of the Regional Centre referred to in section 21;

(*d*) "Chairperson" means the Chairperson of the Board;

(*e*) "employee" means any person appointed by the Regional Centre and includes officers, academic and other staff of the Regional Centre;

(*f*) "Executive Committee" means the Executive Committee of the Regional Centre constituted under section 18;

(*g*) "Executive Director" means the Executive Director of the Regional Centre appointed under sub-section (*1*) of section 23;

(*h*) "existing Regional Centre" means the Regional Centre for Biotechnology Training and Education at National Capital Region, Faridabad;

(*i*) "hall" means a unit of residence, by whatever name called, for the students of the Regional Centre, maintained or recognised by it;

(*j*) "institution" includes autonomous organisations within or outside India, for imparting education, training and conducting research in the areas of Biotechnology and supported by the Government of India or industry or universities or other organisations;

1. 1st March, 2017, *vide* notification No. S.O. 642 (E), dated 28th February, 2017, *see* Gazette of India, Extraordinary, Part II, sec. 3(*i*).

(*k*) "Ordinances" means the Ordinances framed by the Programme Advisory Committee under section 42;

(*l*) "Programme Advisory Committee" means the Programme Advisory Committee of the Regional Centre constituted under section 17;

(*m*) "region" means the region comprising the territories of South Asian Association for Regional Co-operation (SAARC) States and generally the Asia region;

(*n*) "Regional Centre" means the Regional Centre for Biotechnology established under section 3;

(*o*) "Regulations" means the Regulations made by any authority of the Regional Centre under section 43;

(*p*) "Statutes" means the Statutes framed by the Board under section 41;

(*q*) "UNESCO" means the United Nations Educational, Scientific and Cultural Organisation.

3. Establishment and incorporation of Regional Centre for Biotechnology.—(*1*) The Regional Centre for Biotechnology Training and Education at National Capital Region, Faridabad, Haryana functioning under the Department of Biotechnology, Ministry of Science and Technology is hereby established as a body corporate by the name of "Regional Centre for Biotechnology" having perpetual succession and a common seal with power, subject to the provisions of this Act, to contract and shall, by the said name, sue or be sued.

(*2*) The Regional Centre shall consist of a Board of Governors and authorities specified in section 13.

(*3*) The headquarters of the Regional Centre shall be at its campus in the National Capital Region, Faridabad.

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4. Declaration of Regional Centre for Biotechnology as an institution of national importance.—Whereas the objects of the institution known as the Regional Centre for Biotechnology are such as to make the institution one of national importance, it is hereby declared that the institution known as the Regional Centre for Biotechnology is an institution of national importance.

5. Effect of establishment of Regional Centre.—(*1*) On and from the date of commencement of this Act,—

(*a*) any reference to the existing Regional Centre in any law, other than this Act, or in any contract or other instrument, shall be deemed as a reference to the Regional Centre;

(*b*) all properties and assets, movable and immovable, of, or belonging to the existing Regional Centre shall vest in the Regional Centre;

(*c*) all rights and liabilities of the existing Regional Centre shall be transferred to, and be the rights and liabilities of, the Regional Centre;

(*d*) without prejudice to the provisions of clause (*c*), all debts, obligations and liabilities incurred, all contracts entered into and all matters and things engaged to be done by, with or for, the existing Regional Centre immediately before the said date, for or in connection with the purposes of the said Regional Centre shall be deemed to have incurred, entered into or engaged to be done by, with or for, the Regional Centre;

(*e*) all sums of money due to the existing Regional Centre immediately before that date shall be deemed to be due to the Regional Centre;

(*f*) all suits and other legal proceedings instituted or which could have been instituted by or against the existing Regional Centre immediately before that date may be continued or may be instituted by or against the Regional Centre;

(*g*) every employee (including those appointed for imparting instruction or giving training or conducting research in the existing Regional Centre), holding any office under the existing Regional Centre or teaching therein immediately before the commencement of this Act shall hold his office in the Regional Centre or continue teaching therein by the same tenure and upon the same terms and

conditions of service as respects remuneration, leave, provident fund, retirement and other terminal benefits as he would have held such office if this Act had not been enacted and shall continue to do so as an employee of the Regional Centre or until the expiry of the period of six months from that date if such employee opts not to be the employee of the Regional Centre within such period.

(*2*) Notwithstanding anything in the Industrial Disputes Act, 1947 (14 of 1947) or in any other law for the time being in force, absorption of any employee by the Regional Centre in its regular service under this section shall not entitle such employee to any compensation under that Act or any other law and no such claim shall be entertained by any court, tribunal or other authority.

6. Jurisdiction.—The jurisdiction of the Regional Centre shall extend to whole of India and to such centres and specialised laboratories or other units for research, development and instruction, established by the Regional Centre within or outside India.

7. Objectives of Regional Centre.—The objectives of the Regional Centre shall be—

(*a*) to disseminate and to advance knowledge by providing instructional and research facilities in such branches of biotechnology and related fields as it may deem fit including technology policy development;

(*b*) to provide capacity-building through education, training, research and development in biotechnology and related academic fields for sustainable development objectives through regional and international cooperation;

(*c*) to facilitate transfer of knowledge and technology relating to biotechnology at the regional level;

(*d*) to create a hub of biotechnology expertise and to address human resources needs in the countries in the region;

(*e*) to promote and strengthen international co-operation to improve the social and economic conditions and welfare of the people;

(*f*) to promote and facilitate a network of satellite centres in the region as well as within India.

8. Functions of Regional Centre.—The functions of the Regional Centre, shall be—

(*a*) to establish infrastructure and technology platforms which are directly relevant to biotechnology education, training and research;

(*b*) to execute educational and training activities including grant of degrees in education and research in biotechnology and related fields;

(*c*) to produce human resource tailored to drive innovation in biotechnology, particularly in areas of new opportunities and to fill talent gap in deficient areas;

(*d*) to undertake research and development and scientific investigations in collaboration with relevant research centre's in the region;

(*e*) to hold scientific symposia and conferences within India or in the region or outside the region and to conduct short-term and long-term training courses and workshops in all areas of biotechnology;

(*f*) to collect universally available information with a view to setting up data banks for bio-information;

(*g*) to collect and disseminate, through networking, the relevant local knowledge in the field of biotechnology, ensuring protection of intellectual property rights of local stakeholder communities;

(*h*) to develop and implement a policy for intellectual property rights which is equitable and just to the stakeholders involved in research in the Regional Centre;

(*i*) to disseminate the outcome of research activities in different countries through the publication of books and articles;

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(*j*) to promote collaborative research and development networking programme in specific areas of biotechnology with national, regional and international networks and promote exchange of scientists, at the regional level having regard to issues pertaining to intellectual property rights of collaborating institutions promoting equitable sharing of benefits with collaborating institutions.

9. Regional Centre to work in collaboration with other institutions of UNESCO.—The Regional Centre shall pursue its objects and discharge its functions in close collaboration with other national, regional and international institutions of the UNESCO.

10. Powers of Regional Centre.—(*1*) The Regional Centre shall have the following powers, namely:—

(*a*) to provide for masters degree (including integrated programmes leading to masters degree), post-graduate diploma and doctoral degrees in biotechnology and related subjects at the interface of varied disciplines including physical, chemical, biological, medical, agricultural and engineering and other relevant sciences, as may be determined by the Regional Centre, from time to time;

(*b*) to provide for short-term and long-term training courses in biotechnology on specific issues related to the development, extension, implementation and regulation of biotechnology and related areas, as may be specified by Statutes, from time to time;

(*c*) to organise and undertake extramural studies, training and extension services in biotechnology;

(*d*) to confer honorary degrees or other academic distinctions referred to in clause (*a*), in the manner specified by the Statutes;

(*e*) to institute Professorships, Associate Professorships, Assistant Professorships and other academic positions required by the Regional Centre and to appoint persons to such Professorships, Associate Professorships, Assistant Professorships or other academic positions;

(*f*) to recognise an institution of higher learning within India for the purposes of this Act and to withdraw such recognition in accordance with the norms laid down in the Statutes;

(*g*) to appoint persons working in any other institution, including those located outside the country, as academic staff of the Regional Centre for such period as may be specified by the Statutes;

(*h*) to create administrative, technical and other posts and to make appointments thereto, as may be specified by Statutes;

(*i*) to co-operate or collaborate or associate with any institution, including those located outside the country, in such manner as may be specified and for such purposes as may be determined or agreed upon by the Regional Centre;

(*j*) to establish and maintain centres and specialised laboratories or other units for research, development and instruction in India or outside India, as may be determined by the Statutes from time to time;

(*k*) to institute and award fellowships, scholarships, studentships, medals and prizes as may be specified by the Statutes;

(*l*) to make provision for research and advisory services and for that purpose to enter into such agreements with other institutions, industrial or other organisations, including those located outside the country as may be specified by the Statutes;

(*m*) to organise and conduct refresher courses, workshops, seminars and other programmes for teachers, evaluators and other stakeholders;

(*n*) to appoint visiting Professors, Professors of Eminence, Honorary Professors, Adjunct Professors, Emeritus Professors, Consultants and such other persons who may contribute to the advancement and objects of the Regional Centre;

(*o*) to determine standards of admission to the Regional Centre, including examination, evaluation or any other method of testing;

(*p*) to fix, demand and receive payment of fees and other charges;

(*q*) to establish, recognise, maintain and manage halls or residences of students of the Regional Centre and other accommodation for students and to withdraw any such recognition;

(*r*) to lay down conditions of service of all categories of employees, including their code of conduct;

(*s*) to regulate and enforce discipline among the students and the employees, and to take such disciplinary measures in this regard as may be deemed by the Regional Centre to be necessary;

(*t*) to make arrangements for promoting the health and general welfare of the students and employees of the Regional Centre;

(*u*) to receive benefactions, donations and gifts and to acquire, hold and manage, and dispose of, with the prior approval of the Central Government, any property, movable or immovable, including trust and endowment properties, for the purposes or objectives of the Regional Centre;

(*v*) to borrow money, with the prior approval of the Central Government on the security of the property of the Regional Centre; and

(*w*) to do all such other acts and things as may be necessary in furtherance of the objects specified in section 7.

(*2*) In exercising its powers under sub-section (*1*), it shall be the endeavour of the Regional Centre to maintain high standards of education, training and research and the Regional Centre shall, among other measures which may be necessary for the said purpose, take, in particular, the following measures, namely:—

(*a*) conduct innovative courses and programmes of studies with a provision for periodic review and restructuring; and

(*b*) promote e-governance with an effective management information system.

11. Regional Centre open to all castes, creed, race or class.—The Regional Centre or any institution recognised by it shall be open to persons of either sex and whatever caste, creed, race, ethnicity, nationality or class, and it shall not be lawful for the Regional Centre or such institution to adopt or impose on any person, any test whatsoever of religious belief or profession in order to entitle him to be appointed as a member of the academic staff of the Regional Centre or such institution or to hold any other office therein or to be admitted as a student in the Regional Centre or such institution or to enjoy or exercise any privilege thereof.

12. Privileges and immunities of Regional Centre.—The Regional Centre or persons attending the meetings of the Regional Centre shall enjoy such privileges and immunities as the Central Government may grant, pursuant to agreement entered into between the UNESCO and the Government of India from time to time concerning the Regional Centre.

13. Authorities of Regional Centre.—The following shall be the authorities of the Regional Centre, namely:—

(*i*) the Board of Governors;

(*ii*) the Programme Advisory Committee;

(*iii*) the Executive Committee;

(*iv*) the Finance Committee;

(*v*) the Board of Studies; and

(*vi*) such other authorities as may be declared by the Statutes to be the authorities of the Regional Centre.

14. Board of Governors.—(*1*) There shall be a Board of Governors which shall be responsible for the governance of the Regional Centre.

(*2*) The Board shall be the apex body of the Regional Centre and shall consist of the following members, namely:—

(*a*) Secretary to the Government of India in the Ministry of Science and Technology, Department of Biotechnology—*ex officio* Chairperson;

(*b*) three eminent scientists in the relevant field not below the rank of Joint Secretary to the Government of India or equivalent, out of whom at least one shall be a woman, to be nominated by the Central Government—*ex officio* members;

(*c*) a representative of the Director-General of UNESCO;

(*d*) two representatives from amongst the other member States of UNESCO, who substantially contribute resources to the running of the Regional Centre, in such manner as may be specified by the Statutes—members.

(*3*) The Chairperson of the Programme Advisory Committee shall be a permanent invitee of the Board.

(*4*) The Executive Director of the Regional Centre shall be the Convenor of the meetings of the Board.

(*5*) The Chairperson shall ordinarily preside over the meetings of the Board.

(*6*) The Board shall meet at least once in a year and at such times as the Chairperson may decide in such manner as may be specified by the Statutes.

(*7*) The term of office of the members of the Board, other than *ex officio* members, shall be such as may be specified by the Statutes.

(*8*) Subject to the provisions of this Act and the Statutes and the Ordinances made thereunder, the Board may regulate its own procedure (including quorum) for the conduct of meetings and transacting business.

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15. Powers and functions of Board.—Subject to the provisions of this Act, the Board shall have the following powers and functions, namely:—

(*a*) to approve the annual plan and budget of the Regional Centre;

(*b*) to review, from time to time, the broad policies and programmes of the Regional Centre, and to suggest measures for the improvement and development of the Regional Centre;

(*c*) to consider the annual report and the annual accounts of the Regional Centre and the audit report on such accounts;

(*d*) to study and approve the internal procedures, including financial procedure and staff regulations of the Regional Centre;

(*e*) to approve the organisational structure and number of academic staff and other employees at the Regional Centre;

(*f*) to convene special consultative sessions of its members, to which it may invite representatives of other interested countries and international organisations in order to obtain proposals for strengthening the scope of services of the Regional Centre;

(*g*) to carry out projects and activities relevant to the Regional Centre, and to expand the fund-raising strategy and capabilities; and

(*h*) to frame the Statutes.

16. Powers and functions of Chairperson.—(*1*) The Chairperson shall exercise such powers and discharge such functions as may be delegated to him by the Board or as may be specified by the Statutes.

(*2*) If for any reason, the Chairperson is unable to attend any meeting of the Board, any member of the Board nominated by the Chairperson shall preside over the meeting.

17. Programme Advisory Committee.—(*1*) The Programme Advisory Committee shall be the principal academic body of the Regional Centre and shall, subject to the provisions of this Act, advice planning, execution, review and monitoring of the scientific and academic programmes of the Regional Centre.

(*2*) The Programme Advisory Committee shall consist of the following members, namely:—

(*a*) a Chairperson of the Programme Advisory Committee to be nominated by the Board;

(*b*) two members to be nominated by the UNESCO;

(*c*) three members to be nominated by rotation, from amongst the member States of UNESCO which provide maximum financial assistance;

(*d*) two members having expertise and experience in biotechnology policy and legal matters to be nominated by the Central Government;

(*e*) six members from amongst the persons being renowned scientist or academician, to be nominated by the Board.

(*3*) The Executive Director shall be the Member-Secretary, *ex officio*, to the Programme Advisory Committee.

(*4*) The Programme Advisory Committee shall be responsible for—

(*a*) making recommendations on matters of planning and coordinating of the education, training and research activities;

(*b*) recommending modifications or revision of education, training and research programmes of the Regional Centre and submitting reports thereon;

(*c*) reviewing annually the programmes of the Regional Centre, evaluating its progress and submitting the reports thereon;

(*d*) publishing reports on any matter concerning scientific and technical issues referred to it by the Board or by the Executive Director;

(*e*) performing all such duties and to do all such acts as may be necessary for furtherance of education, training and research under this Act;

(*f*) framing the Ordinances; and

(*g*) performing such other functions as may be specified by the Statutes.

(*5*) The fees and allowances payable to members of the Programme Advisory Committee and their term of office shall be such as may be specified by the Statutes.

(*6*) Subject to the provisions of this Act and the Statutes and Ordinances made thereunder, the Programme Advisory Committee may regulate its own procedure (including quorum) for the conduct of meetings and transacting of its business:

Provided that the Programme Advisory Committee shall place the minutes of its meetings before the Board of Governors.

18. Executive Committee.—(*1*) The Executive Committee shall be responsible for management of the Regional Centre and implementation of policies and decisions of the Board relating to management.

(*2*) The constitution, powers and functions of the Executive Committee and the term of office of its members shall be such as may be specified by the Statutes.

19. Finance Committee.—(*1*) The Finance Committee shall review finances, consider the annual budget estimates, the statements of accounts and the audit reports and make recommendations thereon, to the Board.

(*2*) The constitution, powers and functions of the Finance Committee and the term of office of its members shall be such as may be specified by the Statutes.

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20. Other authorities of Regional Centre.—The constitution, powers and functions of other authorities referred to in clause (*vi*) of section 13, and the term of office of its members shall be such as may be specified by the Statutes.

21. Board of Studies.—The constitution, powers and functions of the Board of Studies and the term of office of its members shall be such as may be specified by the Statutes.

22. Officers of Regional Centre.—The following shall be the officers of the Regional Centre, namely:—

(*i*) Executive Director;

(*ii*) Deans;

(*iii*) Sub-Deans;

(*iv*) Associate Director (Administration);

(*v*) Registrar;

(*vi*) Finance Officer; and

(*vii*) such other officers as may be declared by the Statutes to be the officers of the Regional Centre.

23. Executive Director.—(*1*) The Executive Director shall be appointed on the recommendation of the Board in such manner and on such terms and conditions of service, as may be specified by the Statutes.

(*2*) The Executive Director shall—

(*a*) be the principal executive and academic officer of the Regional Centre;

(*b*) direct the work of the Regional Centre in conformity with the programmes and directives established by the Board;

(*c*) propose the draft work plan and budget to be submitted to the Board;

(*d*) prepare the agenda for the sessions of the Board;

(*e*) prepare reports on the Regional Centre's activities for submission to the Board; and

(*f*) exercise such other powers and perform such other functions as may be specified by the Statutes.

(*3*) The financial powers delegated to the Executive Director by the Board shall be such as may be specified by the Statutes.

(*4*) The Executive Director may, if he is of the opinion that immediate action is necessary on any matter, exercise any power conferred on any authority of the Regional Centre by or under this Act and shall report to such authority at its next meeting the action taken by him on such matter.

24. Deans and Sub-Deans.—The Deans and Sub-Deans shall be appointed in such manner and on such terms and conditions of service, and shall exercise such powers and perform such duties, as may be specified by the Statutes.

25. Associate Director (Administration).—(*1*) The Associate Director (Administration) shall be appointed in such manner, and on such terms and conditions of service, as may be specified by the Statutes.

(*2*) The Associate Director (Administration) shall have the power to enter into agreements, sign documents and authenticate records on behalf of the Regional Centre and shall exercise such powers and perform such duties, as may be specified by the Statutes.

26. Registrar.—The Registrar shall be appointed in such manner and on such terms and conditions of service and shall exercise such powers and perform such duties, as may be specified by the Statutes.

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27. Finance officer.—The Finance officer shall be appointed in such manner and on such terms and conditions of service and shall exercise such powers and perform such duties, as may be specified by the Statutes.

28. Other officers.—The manner of appointment and powers and duties and terms and conditions of service of other officers of the Regional Centre, referred to in clause (*vii*) of section 22, shall be such as may be specified by the Statutes.

29. Grants and loans to Regional Centre.—The Central Government may, after due appropriation made by Parliament by law, in this behalf, make to the Regional Centre grants and loans of such sums of money and in such manner as that Government may consider necessary for being utilised for the fulfilment of the objects and purposes of this Act.

30. Fund of Regional Centre.—(*1*) The Regional Centre shall maintain a Fund to which shall be credited—

(*a*) all moneys provided by the Central Government;

(*b*) all fees and other charges received by the Regional Centre;

(*c*) all moneys received by the Regional Centre by way of grants, gifts, donations, benefactions, bequests or transfers; and

(*d*) all moneys received by the Regional Centre in any other manner or from any other source.

(*2*) All moneys credited to the Fund shall be deposited in such banks or invested in such manner as the Regional Centre may, with the approval of the Central Government, decide.

(*3*) The fund shall be applied for meeting—

(*a*) the fees and allowances payable to the Chairperson and members of the Board or Chairperson of the Programme Advisory Committee and members of the other committees and the salaries, allowances and other remunerations payable to the academic staff, officers and other employees of the Regional Centre;

(*b*) the expenses of the Regional Centre in the discharge of its functions and for the fulfilment of its objects and for purposes as envisaged under this Act.

31. Annual report.—(*1*) The annual report of the Regional Centre shall be prepared under the directions of the Executive Director, which shall include, among other matters, the steps taken by the Regional Centre towards the fulfilment of its objectives and shall be submitted to the Board on or before such date as may be specified by the Statutes and the Board shall consider the report in its annual meeting.

(*2*) A copy of the annual report, as prepared under sub-section (*1*), shall be submitted to the Central Government, which shall, as soon as may be, cause the same to be laid before both Houses of Parliament.

32. Annual accounts.—(*1*) The annual accounts and the balance sheet of the Regional Centre shall be prepared under the directions of the Board and shall, once at least every year, and at intervals of not more than fifteen months, be audited by the Comptroller and Auditor-General of India.

(*2*) A copy of the accounts together with the audit report shall be submitted to the Central Government along with the observations, if any, of the Board.

(*3*) A copy of the annual report and annual accounts together with the audit report, shall be submitted to the Central Government which shall, as soon as may be, cause the same to be laid before each House of Parliament.

(*4*) The audited annual accounts, after having been laid before both Houses of Parliament, shall be published in the Official Gazette.

33. Returns and information.—The Regional Centre shall furnish to the Central Government such returns or other information with respect to its property or activities as the Central Government may, from time to time, require, within such period as may be specified by the Central Government.

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34. Review of functioning of Regional Centre.—(*1*) There shall be a review of the functioning of the Regional Centre once in every four years by persons of eminence to be appointed by the Central Government.

(*2*) The Regional Centre shall meet the expenses for conducting the review under sub-section (*1*) and upon receipt of the report of such review, the Board may take appropriate action.

(*3*) In addition to the review under sub-section (*1*), the Board may conduct review of functioning of administrative and academic wings of the Regional Centre, in such manner and at such intervals, as may be specified by the Statutes.

35. Appointment and conditions of service of employees of Regional Centre.—(*1*) All appointments of employees of the Regional Centre shall be made in accordance with the procedure laid down in the Statutes, by—

(*a*) the Board of Governors for the Executive Director, Deans and Sub-Deans;

(*b*) the Executive Director, in any other case.

(*2*) The terms and conditions of service of the employees of the Regional Centre, other than the officers referred to in clause (*vii*) of section 22, shall be such as may be specified by the Statutes.

(*3*) The terms and conditions of service of the academic staff shall be consistent with such staff engaged in higher education and research at Central Universities.

36. Meetings.—The meetings of the Board, Programme Advisory Committee, Executive Committee or other committees constituted by the Regional Centre may be held using contemporary tools of information and communication technologies (including video conferencing) without the members necessarily having to be physically present.

37. Filling of casual vacancies.—All casual vacancies among the members (other than *ex officio* members) of the authorities under section 13 shall be filled, as soon as may be, by the person or body who appoints, elects or co-opts the member whose place has become vacant and the person appointed, elected or co-opted to a casual vacancy shall be a member of such authority for the residue of the term for which the person whose place he fills would have been a member.

38. Proceedings of authorities not invalidated by vacancies.—No act or proceedings of any authority of the Regional Centre shall be invalid merely by reason of the existence of a vacancy or vacancies among its members.

39. Protection of action taken in good faith.—No suit or other legal proceedings shall lie against any officer or employee of the Regional Centre for anything which is in good faith done or intended to be done in pursuance of any of the provisions of this Act or the Statutes, Ordinances or the Regulations made thereunder.

40. Arbitration.—Any dispute arising between the Regional Centre and any of its employees shall, at the first instance, be resolved through such grievance redressal mechanism as may be specified by the Statutes.

41. Power to make Statutes.—(*1*) The Statutes of the Regional Centre shall be framed by the Board of Governors.

(*2*) Without prejudice to the provisions contained in sub-section (*1*), the Executive Committee may make recommendations for framing of Statutes to the Board.

(*3*) Subject to the provisions of this Act, the Statutes may provide for all or any of the following matters, namely:—

(*a*) to provide for short-term and long-term training courses in biotechnology on specific issues related to the development, extension, implementation and regulation of biotechnology and related areas, from time to time under clause (*b*) of sub-section (*1*) of section 10;

(*b*) the manner of conferring honorary degrees or other distinctions under clause (*d*) of sub-section (*1*) of section 10;

(*c*) the norms for recognition of an institution of higher learning within India and to withdraw such recognition under clause (*f*) of sub-section (*1*) of section 10;

(*d*) period for appointment of persons working in any other institution, including those located outside the country, as academic staff of the Regional Centre under clause (*g*) of sub-section (*1*) of section 10;

(*e*) to create administrative, technical and other posts under clause (*h*) of sub-section (*1*) of section 10;

(*f*) the manner and purposes of co-operation or collaboration or association with any institution, including those located outside the country, under clause (*i*) of sub-section (*1*) of section 10;

(*g*) to establish and maintain centres and specialised laboratories or other units for research, development and instruction in India or outside India, clause (*j*) of sub-section (*1*) of section 10;

(*h*) to institute and award fellowships, scholarships, studentships, medals and prizes, under clause (*k*) of sub-section (*1*) of section 10;

(*i*) the manner of entering into agreements with other institutions, industrial or other organisations, including those located outside the country, for research and advisory services under clause (*l*) of sub-section (*1*) of section 10;

(*j*) to declare other authorities to be the authorities of the Regional Centre under clause (*vi*) of section 13;

(*k*) the manner of appointment of representatives from amongst the member States of UNESCO, under clause (*d*) of sub-section (*2*) of section 14;

(*l*) the time and manner in which the Board shall meet under sub-section (*5*) of section 14;

(*m*) the term of office of the members of the Board, under sub-section (*6*) of section 14;

(*n*) such other powers and functions of the Chairperson under sub-section (*1*) of section 16;

(*o*) such other functions of the Programme Advisory Committee under clause (*g*) of sub-section (*4*) of section 17;

(*p*) the fees and allowances payable to members of the Programme Advisory Committee and their term of office under sub-section (*5*) of section 17;

(*q*) the constitution, powers and functions and the term of office of members of the Executive Committee under sub-section (*2*) of section 18;

(*r*) the constitution, powers and functions and term of office of members of the Finance Committee under sub-section (*2*) of section 19;

(*s*) the constitution, powers and functions and term of office of members of other authorities under section 20;

(*t*) the constitution, powers and functions and term of office of members of the Board of Studies under section 21;

(*u*) the other officers as may be declared to be the officers of the Regional Centre under clause (*vii*) of section 22;

(*v*) the manner of appointment and terms and conditions of service of the Executive Director under sub-section (*1*) of section 23;

(*w*) the other powers and functions of the Executive Director under clause (*f*) of sub-section (*2*) of section 23;

(*x*) the financial powers to be delegated to the Executive Director by the Board under sub-section (*3*) of section 23;

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(*y*) the manner of appointment, terms and conditions of service and powers and duties of the Deans and Sub-Deans under section 24;

(*z*) the manner of appointment and terms and conditions of service of the Associate Director (Administration) under sub-section (*1*) and powers and duties to be performed by him under sub-section (*2*) of section 25;

(*za*) the manner of appointment, terms and conditions of service and powers and duties of the Registrar under section 26;

(*zb*) the manner of appointment, terms and conditions of service and powers and duties of the Finance officer under section 27;

(*zc*) the manner of appointment, powers and duties and terms and conditions of service of other officers of the Regional Centre under section 28;

(*zd*) the time for submission of the annual report of the Regional Centre to the Board under sub-section (*1*) of section 31;

(*ze*) the manner and frequency of conducting review of the functioning of administrative and academic wings of the Regional Centre by the Board under sub-section (*3*) of section 34;

(*zf*) the procedure for appointment of employees of the Regional Centre under sub-section (*1*) and their terms and conditions of service under sub-section (*2*) of section 35;

(*zg*) the grievance redressal mechanism for resolution of disputes arising between the Regional Centre and any of its employees under section 40;

(*zh*) the manner of making regulations by the authorities of the Regional Centre under section 43; and

(*zi*) any other matter which may be required or necessary for the purposes of this Act.

42. Power to make Ordinances.—(*1*) Save as otherwise provided in this Act, the Ordinances of the Regional Centre shall be made by the Programme Advisory Committee.

(*2*) Subject to the provisions of this Act and the Statutes made thereunder, the Ordinances of the Regional Centre may provide for all or any of the following matters, namely:—

(*a*) admission of students from within India and from the region to the Regional Centre and their enrolment as such;

(*b*) the course of study;

(*c*) the conditions under which students shall be admitted to the examinations of the Regional Centre and shall be eligible for degrees, diplomas and certificates;

(*d*) the conditions for award of fellowships, scholarships, medals and prizes;

(*e*) the conditions and manner of appointment, term and duties of examining bodies, examiners and moderators;

(*f*) the conduct of examinations;

(*g*) the conditions of residence of students of the Regional Centre;

(*h*) the maintenance of discipline among the employees and students;

(*i*) the courses of study to be laid down for all degrees, diplomas and certificates of the Regional Centre including the medium of instruction and examination;

(*j*) the award of degrees and other academic distinctions, and the manner of granting and obtaining of the same;

(*k*) the withdrawal of degrees, diplomas, certificates and other academic distinctions;

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(*l*) the fees to be charged for courses of study and for admission to examinations, degrees and diplomas of the Regional Centre;

(*m*) the special arrangements, if any, which may be made for the residence and teaching of women students and prescribing of special courses of studies for them;

(*n*) the establishment, management, recognition and abolition of centres of studies, schools, departments, specialised laboratories, halls and institutions; and

(*o*) any other matter which by this Act or the Statutes, is to be, or may be, provided for by the Ordinances.

43. Regulations.—The authorities of the Regional Centre may make Regulations, consistent with the provisions of this Act, the Statutes and the Ordinances for the conduct of their own business and that of the Committees, if any, appointed by them and not provided for by this Act, the Statutes or the Ordinances, in the manner specified by the Statutes.

44. Statutes, Ordinances and Regulations to be published in the Official Gazette and to be laid before Parliament.—(*1*) Every Statute, Ordinance or Regulation made under this Act shall be published in the Official Gazette.

(*2*) Every Statute or Ordinance or Regulation made under this Act shall be laid, as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the Statute or Ordinance or Regulation or both Houses agree that the Statute or Ordinance or Regulation should not be made, the Statute or Ordinance or Regulation shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that Statute or Ordinance or Regulation.

45. Power to make Statutes or Ordinances or Regulations retrospectively.—The power to make Statutes or Ordinances or Regulations under section 41 or section 42 or section 43, as the case may be, shall include the power to give retrospective effect, from a date not earlier than the date of commencement of this Act, to the Statutes or Ordinances or Regulations or any of them but no retrospective effect shall be given to any Statutes or Ordinances or Regulations so as to prejudicially affect the interests of any person to whom such Statutes or Ordinances or Regulations may be applicable.

46. Power to remove difficulties.—(*1*) If any difficulty arises in giving effect to the provisions of this Act, the Central Government may, by order published in the Official Gazette, make such provisions, not inconsistent with the provisions of this Act, as appears to it to be necessary or expedient for removing the difficulty:

Provided that no such order shall be made under this section after the expiry of two years from the commencement of this Act.

(*2*) Every order made under this section shall be laid, as soon as may be after it is made, before each House of Parliament.

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